

2018 PCRLJ 1667; 2018 SLD 2419

[Lahore High Court]

Judges: AUTHOR(S): QAZI MUHAMMAD AMIN AHMED, JUSTICE



MUHAMMAD ASHRAF

versus

THE STATE AND ANOTHERS

CASE TITLE

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THIS ORDER PASSED BY: QAZI MUHAMMAD AMIN AHMED, JUSTICE:----,---

Muhammad Ashraf, petitioner herein, seeks admission to post arrest bail; he is accused in a case registered with Cyber Crime Circle FIA Lahore under sections 20, 21 and 24 of the Prevention of Electronic Crimes Act, 2016 read with sections 420, 500 and 109 of the Pakistan Penal Code, 1860. According to the complainant, her daughter Sobia Bibi was allured into a cyber-communication by the petitioner; it graduated into a more intimate liaison with frequent meetings culminating into prosecutrix's graphic exposure, captured by the petitioner, subsequently disseminated through a fake Facebook I.D; it is prosecution's case that the petitioner confronted her with his betrayal to solicit favours, monetary as well as carnal, leaving the family with no option but to share the dilemma with the Federal Investigation Agency. As the investigation progressed, devices secured by the Investigating Officer generated porno graphic images, shockingly abhorrent, depicting the couple in most obscene physical configurations.

2. Heard. Record perused.

3. The petitioner unmistakably figures with the prosecutrix in the stills generated by the Investigating Officer from the medium secured during investigation and as such argument that these have been manipulated to frame him in the crime

is preposterous to say the least; for the family, it is too heavy a price to foot and for no apparent purpose but to incur a disgustingly perennial embarrassment. Prosecutrix's na ve volitional intimacy cannot be pleaded as a defence for a most grievous misconduct based upon a criminal betrayal resulting into unmitigated intrusion into a woman's privacy. Similarly, petitioner cannot claim bail as of right merely on the ground that offences complained do not fall within the prohibitory clause of section 497 of the Code of Criminal Procedure, 1898. It is by now well settled that in appropriate cases bail can be justifiably declined in offences falling outside the prohibition; in the present case, it can be withheld without being unconscionable. CrI. Misc. No. 220033-B of 2018 fails; petition dismissed. Needless to observe that observations recorded hereinabove being tentative/issue specific shall not impact upon the fate of the case, to be decided by the learned trial Court on the strength of evidence.

SD/-

QAZI MUHAMMAD AMIN AHMED

JUSTICE